



Overview of the module

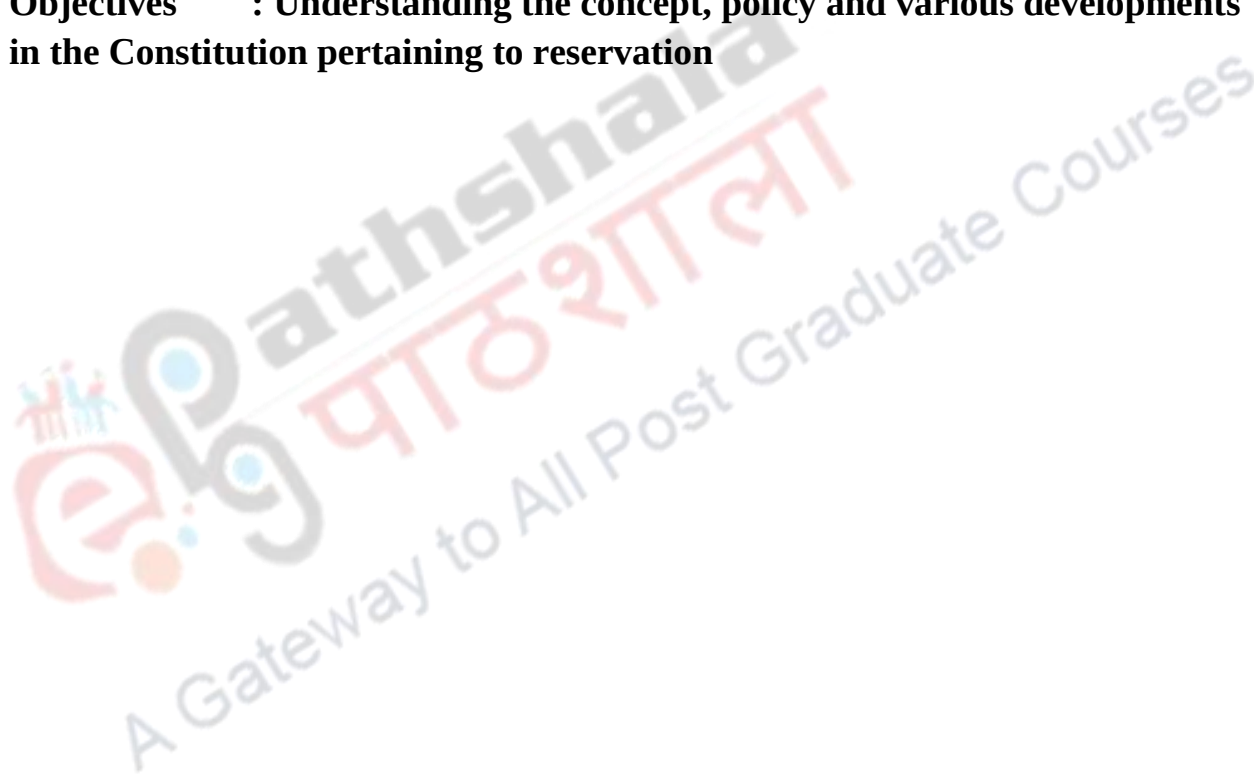
Subject Name : Law

Paper Name : Advanced Constitutional Law Paper For ‘ e-Pathshala’

Module Name : Equality –II : Reservation

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Objectives : Understanding the concept, policy and various developments in the Constitution pertaining to reservation





Quadrant-1- E Text

Equality –II : Reservation

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1. Introduction

The correct term used for reservation in the Indian Constitution is representation. Those who have benefited from reservation and enjoying the fruits of reservation must understand the true meaning of reservation. It is not given to anyone in his individual capacity. It is given to individual as a representative of the under privileged community. The beneficiaries are in turn expected to help their communities to come up. Reservation is a democratic principle to provide representation to the Castes hitherto remained unrepresented in the governance of the country. Those responsible for implementing the policy of reservation must undoubtedly understand that reservation is neither a policy matter, nor a political gimmick or matter of charity. It is a constitutional obligation.

2 Learning Outcome

2.1 Understanding the concept of reservation, its need and legitimacy.

2.2 Awareness about the amendments that have been brought about by the Parliament as a consequence of various judicial decisions.

3 Meaning and Need of Inclusive Social Order

In order to analyze this concept of reservation, the correct connotation of the term “inclusive social order” has to be understood. It is a system of governance through a kind of political arrangement in which members of different sections of society have opportunity to participate on equal footing. Such a social order serves two purposes i.e. firstly, Participatory social order is conducive to peaceful and sustainable development of society. The system of governance which includes certain factious or society creates tension and is inimical to development. Secondly, it augments pool of human right development.

4. Legitimacy of Policy of Reservation

The propriety of this policy of reservation can be understood at two levels i.e. conceptual level and functional level. At conceptual level, the creation of political document i.e. Constitution with the consent of all, by promoting fraternity and solidarity, which is a condition precedent. In preamble, Dr. Ambedkar



as a political scientist has made political arrangement to cut across those barriers. The preamble to the Indian Constitution provides that there should be equality of status and opportunity. Moreover, every effort should be made to promote fraternity among all the people assuring dignity of the individual. At functional Level, the notion of fraternity is explored through strategy of reservation. Though the concept of reservation and equality are poles apart but this principle of reservation has been introduced in the Constitution along with the principle of equality.

5. Types of Reservation

Reservation is of two types i.e. vertical reservations and horizontal reservations. Social reservations in favour of Schedule Caste (SC), Schedule Tribe (ST) and Other Backward Class (OBC) under Article 16(4) are 'vertical reservations'. Special reservations in favour of physically handicapped, women etc., under Articles 16(1) or 15(3) are 'horizontal reservations'.¹ For example, if there are 200 vacancies and 15% is the vertical reservation for SC and 30% is the horizontal reservation for women, the proper description of the number of posts reserved for SC, should be : "For SC : 30 posts, of which 9 posts are for women".² These two concepts have been discussed by the Supreme Court in *Indra Sawhney v Union Of India*³ and *Rajesh Kumar Daria v Rajasthan Public Service Commission*⁴.

Types of Reservation	
Vertical Reservation	Horizontal Reservation
Where a vertical reservation is made in favour of a backward class under Article 16(4), the candidates belonging to such backward class, may compete for non-reserved posts and if they are appointed to the non-reserved posts on their own merit, their numbers will not be counted against the quota reserved for the respective backward class. Therefore, if the number of SC candidates, who by their own merit, get selected to open competition vacancies, equals or even exceeds the percentage of posts reserved for SC candidates, it cannot be said the reservation quota for SCs has been filled. The entire reservation quota will be intact and available in addition to those selected under Open Competition category.	Where a special reservation for women is provided within the social reservation for Scheduled Castes, the proper procedure is first to fill up the quota for scheduled castes in order of merit and then find out the number of candidates among them who belong to the special reservation group of 'Scheduled Castes-Women'. 1. If the number of women in such list is equal to or more than the number of special reservation quota, then there is no need for further selection towards the special reservation quota. 2. Only if there is any shortfall, the requisite number of scheduled caste women shall have to be taken by deleting the corresponding number of candidates from the bottom of the list relating to Scheduled Castes. To this extent, horizontal (special) reservation differs from vertical (social) reservation. Thus, women selected on merit within the vertical reservation quota will be counted against the horizontal reservation for women.
For example: Out of 200 posts, there is 15%	For example: If 19 posts are reserved for SCs (of which the quota for women

¹ *Rajesh Kumar Daria v Rajasthan Public Service Commission*, AIR 2007 SC 3127, at 3130.

² *Id.*, at 3130.

³ AIR 1993 SC 477.

⁴ AIR 2007 SC 3127.



social reservation for SC and ST Category. It means that out of 200 posts, 30 posts are reserved for SC/ST category. Suppose out of 170 seats in General Category, 40 SC/ST candidates got selected on merit basis in this category only. Their selection will not affect the seats reserved for SC/ST. Their selection will not affect the seats which are specifically reserved for SC/ST candidates.	is four), 19 SC candidates shall have to be first listed in accordance with merit, from out of the successful eligible candidates. If such list of 19 candidates contains four SC women candidates, then there is no need to disturb the list by including any further SC women candidate. On the other hand, if the list of 19 SC candidates contains only two woman candidates, then the next two SC woman candidates in accordance with merit, will have to be included in the list and corresponding number of candidates from the bottom of such list shall have to be deleted, so as to ensure that the final 19 selected SC candidates contain four women SC candidates.
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6. Juxtaposition of Reservation vis-à-vis Equality

Equality is the prime principle and starting point of all other liberties. Our Constitution contains “Code of Equality” i.e. Article 14, 15 and 16. Article 14 is a generic term and can be expounded infinitely. Article 15 and Article 16 is restatement of Article 14 in Indian context. Article 15 is the most central to it.

The concept of equality and reservation are diagonally opposite to each other. Article 15 provides equality by clauses (1) and (2), but the same has been negated by subsequent clauses which permits making of special provisions in favour of some particular classes. Clause (1) of Article 15 directs the State not to discriminate against a citizen on grounds only of religion, race, caste, sex or place of birth or any of them. The prominence of the word “only” lies in the fact that Article 15 will come into play only in those cases where discrimination has been done solely on the ground of “religion”, “race”, “caste”, “sex” or “place of birth”. It signifies that other qualifications being equal, “religion”, “race”, “caste”, “sex” or “place of birth” cannot be a ground of preference. Clause (2) prohibits citizens as well as the State from making such discrimination with regard to access to shops, hostels etc. and all places of public entertainment, of public resort, wells, tanks, road etc. Clause (1) of Article 15 prohibits discrimination in any matter which is exclusively within the control of the State whereas clause (2) prohibits both the State and the private individual, who so ever is in the control of the above- mentioned places. Clause (2) is a particular application of the general principle against discrimination embodied in Clause (1). Clause (3) empowers the State to make special provisions for the protection of women and children. For example, Article 42 of the Constitution enjoins the State to make special provision for securing just and humane conditions of work and for maternity relief. A law made by the Parliament to implement this Directive like the Maternity Benefits Act, 1961 and the Factories Act, 1948 would fall within purview of Article 15 (3). Clause (4) which was added by the Constitution (1st Amendment) Act, 1951, enables the State to make special provisions for the protection of the interests of the Backward Classes of citizens. This amendment was made as a sequel to the decision of the Supreme Court in *State of Madras v. Champakam*



*Dorairajan*⁵. In this case, the Madras Government issued a communal G.O., providing for reservation of seats in the State Medical and Engineering colleges for different communities in proportion of students of each community. The Supreme Court held the order to be violative of Article 15 (1) as seats were reserved on ground of religion, race and caste. In order to nullify the effect of this judgement, Clause (4) was added to Article 15.

In the same manner, Article 16(1) contains another facet of equality. It secures equality of opportunity in matters relating to public employment to every citizen. But it does not prevent the State from prescribing the requisite qualifications and the selection procedure for recruitment or appointment. Such qualifications may include mental excellence, physical fitness, sense of discipline and moral integrity etc. These should not be arbitrary. It must be based on reasonable ground having nexus with the efficient performance of the duties and obligations attached to that particular office or post. Clause (2) of Article 16 further strengthens the guarantee contained in clause (1). Clause (2) prohibits the state from making discrimination against any citizen in respect of any employment or office under the State only on grounds of religion, race, caste, sex, descent, and place of birth, residence or any of them. There would be no contravention of this clause where discrimination is based on grounds other than those mentioned in Clause (2) or partly on ground mentioned in this clause and partly on some other considerations. For example, if discrimination is made on the ground of backwardness, Clause (2) would not be applicable. The subsequent clauses negated this concept of equality by permitting making of special provisions in special circumstances and for specific classes. Clause (3) empowers the parliament to make any law prescribing any requirement as to residence within that state or union territory. Clause (4) permits the state to make provision for the reservation of appointments or posts in favour of any backward class of citizens who are not adequately represented in the services under the state. It is only an enabling provision which has been enacted to secure egalitarian equality. Clause (5) provides that a law may prescribe that the incumbent of an office, in connection with the affairs of any religious or denominational institution, or any member of governing body thereof, shall be a person professing a particular religion or belonging to a particular denomination. Thus, there was conflict between these two set of provisions. As this conflict was not envisaged by the framers of the Constitution, the Judiciary has tried to reconcile both of them in the following manner.

Reconciliation Between two Conflicting Concepts of Equality and Reservation	
Narrow interpretation	The provision of reservation is in the nature of an exception which completely excludes the rest of

⁵ AIR 1951 SC 226.



given in the case of M.R. Balaji v State of Mysore, AIR1963SC 649 and T. Devadasan v Union of India, (AIR1964SC179).	the society is clearly outside the scope of Article 15(4). It would be extremely unreasonable to assume that in enacting Article 15(4) the Constitution intended to provide that where the advancement of the Backward Classes of the Scheduled Castes and Tribes was concerned, the fundamental rights of the citizens constituting the rest of the society were to be completely and absolutely ignored. Moreover, clause (4) of Article 16 is by way of a proviso or an exception to clause (1). A proviso or an exception cannot be so interpreted as to nullify or destroy the main provision. To hold that unlimited reservation of appointments could be made under clause (4) would in effect efface the guarantee contained in clause (1) or at best make it illusory.
Attempt to deviate from the narrow view in T. Devadasan's case (dissenting judgement given by justice Subba Rao)	The expression "nothing in this article" in Article 16(4) of the Constitution of India is a legislative device to express its intention in a most emphatic way that the power conferred there under is not limited in any way by the main provision but falls outside it. It has not really carved out an exception, but has reserved a power untrammelled by the other provisions of the Article.
Backwardness of the Weaker Sections of Society becomes one of the Form of Classification, State of Kerala v. N.M.Thomas, (AIR1976SC490).	Article 16 is merely an incident of Article 14 and both these articles form a part of the common system seeking to achieve the same end. Clause (4) of Article 16 of the Constitution cannot be read in isolation but has to be read as part and parcel of Article 16, Clauses (1) and (2). It is not an exception to Article 14 in the sense that whatever classification can be made can be done only through clause (4) of Article 16. However, it is an explanation containing an exhaustive and exclusive provision regarding reservation which is one of the forms of classification. Thus, clause (4) of Article 16 deals exclusively with reservation and not other forms of classification which can be made under Article 16(1) itself. The basic concept of equality is equality of opportunity for appointment. Preferential treatment for members of backward classes with due regard to administrative efficiency alone can mean equality of opportunity for all citizens. Equality under Article 16 could not have a different content from equality under Article 14. Discrimination with reasons means rational classification for differential treatment having nexus to the constitutionally permissible object. Preferential representation for the backward classes in services with due regard to administrative efficiency is permissible object and backward classes are a rational classification recognized by our Constitution. Therefore, differential treatment in standards of selection is within the concept of equality. Article 14 states that like should be treated alike and it has carved out an independent area for Clause 3, 4 and 5 of Article 15.
Conversion of formal equality into equality in fact through education, T.M.A.Pai Foundation v State Of Karnataka, AIR 2003 SC 355.	The single most powerful tool for the upliftment and progress of such diverse communities is education. The state, with its limited resources and slow-moving machinery, is unable to fully develop the genius of the Indian people. The Supreme Court held that the State cannot insist on private educational institutions which receive no aid from the State to implement State's policy on reservation for granting admission on lesser percentage of marks, i.e. on any criterion except merit.
The Constitution (Ninety-third Amendment) Act, 2005.	As a consequence of T. M. A. Pai Foundation's case, special provision relating to admission to educational institutions has been made by 93rd Amendment. This amendment has added clause 5 to Article 15. This clause enables the State to make special provisions for the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes or the Scheduled Tribes, in so far as, such special provisions relate to their admission to educational institutions, including private educational institutions, whether aided or unaided by the State, other than the minority educational institutions.
Reservation is an instance of classification inherent in Article 15 (1), Ashoka Kumar Thakur v. Union Of India, (2008) 6 SCC 1	1. The fundamental question that arises in this case is whether Article 15(5), inserted by the 93rd Amendment, is consistent with the other provisions of the Constitution or whether its impact runs contrary to the Constitutional aim of achieving a casteless and classless society. 2. The Supreme Court upholds the validity of the Central Educational Institutions (Reservation in Admission) Act, 2006 providing 27 per cent quota to OBCs in the educational institutions but excludes the "Creamy Layer". It was held that the Constitution (Ninety-Third Amendment) Act, 2005 does not violate the "basic structure" of the Constitution so far as it relates to the state maintained institutions and aided educational institutions. 3. Question whether the Constitution (Ninety-Third Amendment) Act, 2005 would be constitutionally valid or not so far as "private unaided" educational institutions are concerned, is left open to be



	decided in an appropriate case. 4. This Court further held that clause (4) of Article 15 is neither an exception nor a proviso to clause (1) of Article 15. Clause (4) has been considered to be an instance of classification inherent in clause (1) and an emphatic restatement of the principle implicit in clause (1) of Article 15.
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7. Basis for Determining a Class as Backward

The mechanism of reservation can be used for the advancement of socially and educationally backward classes of citizens. The judiciary has discussed various factors which are to be considered for determining the social and educational backwardness.

Name of the Case	Basis for Determining Backwardness
<i>M.R. Balaji v State of Mysore</i> , AIR 1963 SC 649.	Caste cannot be the sole or even predominant factor though it may be a relevant test for ascertaining whether a particular class is a backward class or not. Backwardness under Article 15(4) must be social and educational, and social backwardness is the result of poverty in the ultimate analysis.
<i>R. Chitralakha v State of Mysore</i> , AIR 1964 SC 1823.	The court accepted the criteria that classification of socially and educationally backward classes should be made on basis of economic conditions and occupations. Though the caste might be a relevant circumstance for ascertaining the social backwardness, it could not be the sole or dominant consideration.
<i>P. Rajendran v State of Madras</i> , AIR 1968 SC 1012.	The test of backwardness which was predominantly based on caste was upheld by the court. It was held that caste is also a class of citizens and if the caste as a whole is socially and educationally backward, reservation can be made in favour of such a caste.
<i>Triloki Nath v State of J&K</i> , AIR 1969 SC 1.	The Supreme Court struck down a government order reserving 50% of the vacancies for the Muslims of Kashmir, 40% for the Jammu Hindus and 10% for the Kashmiri Hindus with the observation that backward class was not synonym of backward caste or backward community.
<i>A. Periakaruppan v State of T.N.</i> , AIR 1971 SC 2303.	The court upheld a caste based test of backwardness with the observation that it was permissible so long as such castes are socially and educationally backward though it warned against vested interests being created in favour of castes and asked for constant revision of the test.
<i>State of A.P. v USV Balram</i> , AIR 1972 SC 1375.	A caste is also a class of citizens and that a caste as such may be socially and educationally backward.
<i>State of U.P. v Pradeep Tandon</i> , AIR 1975 SC 563.	The place of habitation and its environment could be a determining factor in determining the social and educational backwardness. The Court upheld reservations for persons from hill and Uttarakhand areas. It was found that the absence of means of communication, technical processes and educational facilities kept the poor and illiterate people in the remote and sparsely populated areas backward. However, reservation of seats for rural areas was invalidated because the division of the people on the ground that the people in the rural areas were poor and those in the urban areas were not was not supported by the facts.
<i>State of Kerala v N.M. Thomas</i> , AIR 1976 SC 490.	The better off among the Harijans who should be given protection in the matter of employment should not be permitted to negative the benefits of preferential treatment to Harijans as a class.
<i>K.S. Jayasree v State of Kerala</i> , AIR 1976 SC 2381.	In ascertaining social backwardness of a class of citizens both caste and poverty have to be taken into account.
<i>K.C. Vasanth Kumar v State of Karnataka</i> , AIR 1985 SC 1495.	Both caste and poverty would be relevant factors in determining the backwardness of citizens. Occupation and place of habitation may also be taken into account.
<i>Indra Sawhney v Union of India</i> , AIR 1993 SC 477.	The matter seems to have been settled by the majority of the Supreme Court by holding that caste can be an important or even the sole factor in determining the social backwardness and that poverty alone cannot be such a criterion.



8. Different Horizons of the Concept of Reservation

The conflict between Parliament and Judiciary over the matter of reservation has resulted in pronouncements of landmark decisions by the courts and various amendments in the constitution by the Parliament. The principles laid down in various judgments and the consequent amendments are as follows:

Judgement/ Amendment	Facts	Principles
M.R. Balaji v State of Mysore , AIR 1963 SC 649.	The Mysore Government issued an order reserving seats in the medical and engineering colleges in the States in the following manner i.e. Backward Classes 28%, more backward classes 20 %, and Scheduled Caste and Scheduled Tribes 18%. Thus, only 32% seats were left for general merit pool and 68 % of the available seats in the colleges were reserved seats. The Supreme Court held that the order is inconsistent with Article 15 (4).	1. The State would not be justified in ignoring altogether advancement of the rest of the society in its zeal to promote the welfare of the backward classes. National interest would suffer if qualified and competent students were excluded from admission into institution of higher education. The court held that a special provision should be less than 50% and how much less than 50% would depend upon the relevant prevailing circumstances in each case. 2. The Mysore order was based solely on caste without regard to other relevant factors and this was not permissible under Article 15 (4). Social backwardness is in the ultimate analysis the result of poverty to a very large extent. 3. The court declared that Article 15(4) does not envisage classification between backward and more backward classes as was made by the Mysore order. Article 15(4) authorizes special provisions being made for really backward classes and not for such classes as were less advanced than the most advanced classes in the State. By adopting the technique of classifying communities into backward and more backward classes, 90% of the total State population had been treated as backward. 4. The importance of the judgment lies in realistically appraising the situation when the court said that economic backwardness would provide a much more reliable, yardstick for determining social backwardness because more often educational backwardness is the outcome of the social backwardness. 5.. The court also ruled that reservation under Article 15(4) should be reasonable. It should not be such as to defeat or nullify the main rule of equality enshrined in Art. 15(1). While it would not be possible to predicate the exact permissible percentage of reservation it can be stated in a general and broad way that it ought to be less than 50% how much less than 50% would depend upon the relevant prevailing circumstances in each case.
T Devadasan's Case and Carry Forward Rule , AIR 1964 SC 179.	The carry forward rule envisaged that in a year, 17 1/2 per cent posts were to be reserved for Scheduled Castes /Tribes ; if all the reserved posts were not filled in a year for want of suitable candidates from those classes then the shortfall was to be carried forward to the next year and added to the reserved quota for that year and this could be done for the next two years. The result of the rule was that in a year out of 45 vacancies in the cadre of section officers, 29 went to the	1. The Supreme Court considered the scope of Article 16(4). In this case, the carry forward rule, regulating reservation of vacancies for candidates belonging to Scheduled Castes and Scheduled Tribes, was struck down by the court as invalid and unconstitutional. As a result of the application of the impugned Rule, in the year 1961, out of the 45 vacancies, actually filled 29 went to the candidates belonging to Scheduled Castes/Tribes. That came to about 64% of reservation. 2. The majority of the Supreme Court followed the verdict in the case of <i>M.R. Balaji v State of Mysore</i> and declared that reservation exceeding 50% in a single year would be unconstitutional and invalid. The court held that such excessive reservation had the effect of destroying the guarantee of equality of opportunity contained in Article 16(1). The court further ruled that for the purpose of reservation each year should be taken by itself and therefore, there should be no carry forward of the unfilled reserved vacancies. 3. The overriding effect of clause (4) of Article 16 on clauses (1) and (2) could only extend to the making of a reasonable number of reservations of



	reserved quota and only 16 posts were left for others. This meant reservation upto 65% in the third year, and while candidates with low marks from the scheduled castes and scheduled tribes were appointed, candidates with higher marks from other classes were not taken.	appointments and posts to certain circumstances. A reasonable number is one which strikes a reasonable balance between the claim of the backward classes and those of other citizens.
State of Kerala v N.M. Thomas , AIR 1976 SC 490.	The Kerala Government framed rules regulating promotions from the cadre of lower division clerks to the higher cadre of upper division clerks, which was made dependent on the passing of a departmental test within two years of the introduction of this test. Failure to pass the test within two years disentitled the lower division clerk promotion in future. However, by an order issued subsequently under the said Rule, the members belonging to Scheduled Castes/ Scheduled Tribes were granted a longer period and were given two extra years to pass the test.	1. Article 16(1) being a facet of Article 14 would permit reasonable classification and thus, envisaged equality between the members of the same class of employees but not equality between members of a separate independent class. Classification on the basis of backwardness did not fall within Article 16(2) and was legitimate for the purpose of Article 16(1). Giving preference to an underrepresented backward community was valid and would not contravene Articles 14, 16(1) and 16(2). The classification of employees belonging to Scheduled Castes and Scheduled Tribes for allowing them an extended period of two years for passing the special tests for promotion is a just and reasonable classification having rational nexus to the objection of providing equal opportunity for all citizens in matters relating to employment or appointment to public office. 2. The court has taken a more flexible view of Article 16(1) than had been taken by it in earlier cases. It is now clearly established that Article 16(4) does not cover the entire field covered by Articles 16(1) and (2) and some of the matters relating to employment in respect of which equality of opportunity is guaranteed by Articles 16(1) and (2) do not fall within Article 16(4). 3. This decision threw into the melting pot the decision in <i>Devadasan's case</i> in which the carry forward rule was called in question. Even the rule requiring that the overall limit of reservation should not exceed 50% was now sought to be diluted as this rule was characterized as a rule of caution rather than an absolute rule. In <i>Thomas case</i>, the court upheld filling of 24 vacancies out of 51 for members of Scheduled Castes and Scheduled Tribes on the basis of the carry forward rule relating to class III posts. 4. It represents a new trend a high water mark on the question of reservation in services for and grant of other concessions to the backward classes.
Indra Sawhney v Union of India (the Mandal Commission case), AIR 1993 SC 477.	In this case, the court was asked to pronounce on the constitutional validity of two office memorandum of the Central Government. One of them, which was initially brought before the court was issued on August 13, 1990. Implementing partially the Mandal Commission report, it reserved 27 % vacancies in civil posts and services under the Government of India to be filled by directed recruitment from the socially and educationally backward classes (SEBCs). Before the Court could decide the validity of this memorandum,	1. Clause (4) of Article 16 is not an exception to Article 16(1). It is an instance of classification implicit in Article 16(1). The Court overruled its earlier decision in <i>M.R. Balaji's case</i> and <i>Devadasan's case</i> and reiterated the mandate <i>Thomas</i>. 2. Clause (4) of Article 16 is exhaustive of the special provision that can be made in favour of the backward class of citizens. In this respect, the majority has reiterated the verdict of <i>Thomas case</i>. 3. There is no constitutional bar to classify the backward classes of citizens into backward and more backward categories. The majority overruled <i>M R Balaji's case</i>. 4. The reservation contemplated in Clause (4) of Article 16 should not exceed 50%. However, in extraordinary situation, this percentage may be exceeded. But, every excess over 50% will have to be justified on valid grounds. Reserved category candidates getting selected in open competition on the basis of their merit, should not be counted against the quota reserved for them. The majority has affirmed <i>M.R. Balaji's case</i> and <i>Devadasan's case</i> and overruled <i>Thomas's case</i> by laying down that reservation or special provision should not exceed 50%. 5. The carry forward of unfilled reserved vacancies is not per se



	the other memorandum was issued on September 25, 1991. It provided for preference to the poorer sections of SEBCs in respect of 27 % reservation made by the first memorandum and also made additional reservation of 10% vacancies for other economically backward sections of the people who were not covered by any existing schemes of reservation.	unconstitutional. However, the operation of carry forward rule should not result in breach of 50% rule. The court has overruled <i>Devadasan's case</i> where the carry forward rule was struck down on the ground that its application resulted in reservation of more than 50% vacancies in favour of the backward classes of citizens. 6. The backwardness contemplated by Article 16(4) is mainly social backwardness. It should not be correct to say that the backwardness under Article 16(4) should be both social and educational. A backward class cannot be determined only and exclusively with reference to economic criterion. It may be a consideration or basis along with and in addition to social backwardness but it can never be the sole criterion. It is permissible for the Government or other authority to identify a backward class of citizens on the basis of occupation cum income without reference to caste. 7. Identification of backward classes can certainly be done with reference to castes and sections of people. One can start the process with the castes, wherever they are found, apply the criteria (evolved for determining backwardness) and find out whether it satisfies the criteria. If it does, then, what emerges is a backward class of citizens within the meaning of and for the purposes of Article 16(4). 8. In order to ensure that the backward classes are given adequate representation in the State Services and to ensure that the benefit of reservation reach the poorer and the weakest section of the class, the creamy layer should be excluded in that class, from claiming the benefit. 9. Article 16(4) does not contemplate or permit reservation in promotions. The reservations are thus confined to initial appointments only.
Inclusion of new clause (4A) to Article 16 by 77th Amendment	The rule laid down by the Supreme Court in <i>Indra Sawhney's case</i> regarding no reservation in promotions has been modified by the Constitution (Seventy Seventh Amendment) Act, 1995, which has added a new clause (4A) to Article 16	Clause (4A) to Article 16 provides that nothing in this article shall prevent the State from making any provision for reservation in matters of promotion to any class or classes of posts in the services under the State in favour of the Scheduled Castes and the Scheduled Tribes which, in the opinion of the State, are not adequately represented in the services under the State.
Union of India v Virpal Singh Chauhan, AIR 1996 SC 448.	The rule of reservation in promotion factually created a very poignant and objectionable situation in <i>Virpal's case</i>. Out of the 33 candidates being considered for promotion to 11 vacancies, all were SC/ST candidates. Even not a single candidate among them belong to the general category	As a consequence of Article 16 (4), not only the juniors are stealing a march over the seniors but the march is so rapid that not only erstwhile compatriots are left for behind but even the persons who were in the higher categories at the time of entry of Scheduled Castes / Scheduled Tribes candidates in the service have also been left behind. Such a configuration could not certainly have been intended by the framers of the Constitution or the framers of the rules of reservation.
Ajit Singh Januja v State of Punjab, AIR 1999 SC 3741.	when there is a question to fill up a post reserved for a SC/ST candidate in a still higher grade then a SC /ST candidate is to be promoted first but when the question is in respect of promotion to a general category post then the general category candidate who has been promoted later would be considered first for promotion applying either the principle of seniority cum merit or merit cum seniority.	The court has agreed with the <i>Virpal's</i> ruling that seniority between the reserved category candidates the general candidates in the promoted category shall continue to be governed by their panel position i.e. with reference to their inter se seniority in the lower grade. The rule of reservation gives accelerated promotion but it does not give the accelerated consequential seniority.



Catch Up Rule and 85th Constitutional Amendment	To negate the effect of the <i>Virpal Singh's case</i> and <i>Ajit Singh Januja's case</i> , Article 16(4A) has been amended by the Constitution (85 th Amendment) Act, 2001.	In the amended clause (4A) of Article 16, in place of the words “in matter of promotion to any class”, the words “in matter of promotion with consequential seniority to any class” have been substituted. The effect of the Constitution (85 th Amendment) Act, 2001 is that when reserved candidates promoted earlier to general candidates their seniority in the new cadre would rank from the date of their joining on promotion and this seniority would not and could not have the effect of getting wiped out after the promotion of general candidates from their respective dates of promotion and that of general candidates would remain junior in higher echelons to the reserved candidates.
The Constitution (Eighty first Amendment) Act, 2000 and Carry Forward Rule	In <i>Indra Sawhney v Union of India</i> , the majority ruled that operation of carry forward rule should not result in breach of 50% rule. This rule does not exist any longer after the enactment of the Constitution (Eighty first Amendment) Act, 2000 which has added the following clause (4B) to Article 16	Clause (4B) to Article 16 provides that nothing in this article shall prevent the State from considering any unfilled vacancies of a year which are reserved for being filled up in that year in accordance with any provision for reservation made under clause (4) or clause (4A) as a separate class of vacancies to be filled up in any succeeding year or years and such class of vacancies shall not be considered together with the vacancies of the year in which they are being filled for determining the ceiling of fifty per cent reservation on total number of vacancies of that year. This new clause (4B) enables the State to carry forward the unfilled reserved vacancies to be filled in any succeeding years so as to remove the backlog notwithstanding the rule of 50% ceiling.
Constitutional Validity of 77th, 81st, and 85th Amendment Upheld in <i>M. Nagraj Case</i>, AIR 2007 SC 71.	The Supreme court in <i>M. Nagraj v Union of India</i> , upheld the 77th, 81th, and 85th amendments to the Constitution that have inserted Articles 16(4A) and 16(4B) into the fundamental rights.	1. The state is free to exercise its discretion of providing reservation. But it is subject to limitation, namely, that there must exist compelling reasons of backwardness, inadequacy of representation in a class of post(s), and keeping in mind the overall administrative efficiency. Even if the state has reasons to make reservation, but if the impugned law violates any of the above substantive limits on the width of the power, the same would be liable to be set aside. 2. Reservation has to be used in a limited sense otherwise it will perpetuate casteism in the country. If the creamy layer among backward classes was given some benefits as backward classes, it will amount to equals being treated as unequals. It emphasized that any law that fails to take this principle into account would be against the fabric of equality of opportunity and would be unconstitutional. 3. The “creamy layer” principle entails that the affluent persons among the backward classes must be kept out of the reservation scheme as such persons neither require nor deserve the positive discrimination. For the first time, judiciary has categorically stated the power of the state to reserve posts is controlled by the “Principle of creamy layer”. 4. While holding that the ‘creamy layer’ among the reserved category be kept out of the purview of reservation, which shall not exceed 50%, has cautioned the government that excess quota will result in reverse discrimination. 5. These amendments do not alter the structure of Articles 14, 15 and 16 (equity code). The parameters mentioned in Article 16(4) are retained. Clause (4A) is derived from clause (4) of Article 16. Clause (4A) is confined to SCs and STs alone. Therefore, the present case does not change the identity of the Constitution. 6. The field of exercise of the amending power is retained by the impugned amendments, as these amendments have introduced merely enabling provisions because merit, efficiency, backwardness and inadequacy cannot be identified and measured in vacuum. Moreover, Article 16(4A) and Article 16(4B) fall in the pattern of Article 16(4) and as long as the parameters mentioned in those articles are complied with by the States, the provision of reservation cannot be faulted. Articles 16(4A) and 16(4B) are classifications within the principle of equality under Article 16(4). 7. The power to amend is an enumerated power in the Constitution and, therefore, its limitations, if any, must be found in the Constitution itself. The concept of reservation in Article 16(4) is hedged by three



		constitutional requirements, namely, backwardness of a class, inadequacy of representation in public employment of that class and overall efficiency of the administration.
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8. Conclusion

In the end, it could be said that the Founding Fathers of the Constitution were aware of the ripples of inequality present in society, decried the notion of caste and ensured that the constitutional framework contained adequate safeguards that would ensure the upliftment of the socially and educationally backward classes of citizens, thus creating a society of equals. It is the duty of the State to promote positive measures to remove barriers of inequality and enable diverse communities to enjoy the freedoms and share the benefits guaranteed by the Constitution. In the context of education, any measure that promotes the sharing of knowledge, information and ideas and encourages and improves learning, among India's vastly diverse classes deserves encouragement. But, any such special measure should satisfy the parameters of Article 14 and not in any way abdicate the principle of efficiency.



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